

House File 639

S-3159

1 Amend the amendment, S-3153, to House File 639, as amended,  
2 passed, and reprinted by the House, as follows:

3 1. By striking page 1, line 1, through page 1, line 33, and  
4 inserting:

5 <Amend House File 639, as amended, passed, and reprinted by  
6 the House, as follows:

7 1. By striking everything after the enacting clause and  
8 inserting:

9 <Section 1. Section 6A.21, subsection 2, Code 2025, is  
10 amended to read as follows:

11 2. The limitation on the definition of public use,  
12 public purpose, or public improvement does not apply to the  
13 establishment, relocation, or improvement of a road pursuant  
14 to [chapter 306](#), or to the establishment of a railway under the  
15 supervision of the department of transportation as provided in  
16 section 327C.2, or to an airport as defined in [section 328.1](#),  
17 or to land acquired in order to replace or mitigate land used  
18 in a road project when federal law requires replacement or  
19 mitigation. This limitation also does not apply to utilities,  
20 persons, companies, or corporations under the jurisdiction  
21 of the Iowa utilities commission or to any other utility  
22 conferred the right by statute to condemn private property or  
23 to otherwise exercise the power of eminent domain, except to  
24 the extent such purpose includes the construction of hazardous  
25 liquid pipelines for the transportation or transmission of  
26 liquefied carbon dioxide, or aboveground merchant lines. For  
27 purposes of this subsection, "utility" means a public utility as  
28 defined in section 306.46, subsection 2.

29 Sec. 2. EFFECTIVE DATE. This Act, being deemed of immediate  
30 importance, takes effect upon enactment.

31 Sec. 3. APPLICABILITY. This Act applies to condemnation  
32 proceedings for which the application filed under section 6B.3  
33 is filed on or after the effective date of this Act.>

34 2. Title page, by striking lines 1 through 8 and inserting  
35 <An Act relating to the exercise of eminent domain for the

1 construction of hazardous liquid pipelines and including  
2 effective date and applicability provisions.>>

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JEFF TAYLOR